it is created. This was decided in *Bank of Augusta* v. *Earle*,* and the case was referred to with approval by Taney, C. J., in delivering the judgment of the court in *Covington Drawbridge Company* v. *Shepherd*.† In this last case, the Chief Justice, in referring to a preceding case, says, that the declaration stated that the corporation itself was a *citizen* of Indiana. Now, no one, we presume, ever supposed that the artificial being created by an act of incorporation could be a citizen of a State in the sense in which that word is used in the Constitution of the United States, and the averment was rejected because the matter averred was simply impossible. Yet that is one precise position of the appellant here. He insists that a corporation is a citizen of a State within the scope and meaning of the provision of the Constitution: "That the citizens of each State shall be entitled to all privileges and immunities of citizens in the several States." This court has several times decided that a corporation is not a citizen within the meaning of the Constitution.

In *Lafayette Insurance Co.* v. *French*,‡ this court says:

"The averment, that the company is a citizen of the State of Indiana, can have no sensible meaning attached to it."

This court would not hold that either a voluntary association of persons, or an association into a body politic, created by law, was a citizen of a State within the meaning of the Constitution. And, therefore, if the defective averment in the declaration had not been otherwise supplied, the suit must have been dismissed. In *Covington Drawbridge Company* v. *Shepherd*, referring to the case just mentioned, the court uses the following language:

"Now, no one, we presume, ever supposed that the artificial being created by an act of incorporation could be a citizen of a State in the sense in which that word is used in the Constitution of the United States, and the averment was rejected because the matter averred was simply impossible."

* 13 Peters, 519. † 20 Howard, 227. ‡ 18 Howard, 404.